

NO. 141-370402-25

**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,
Plaintiffs and Counter-Defendants,**

v.

**KATHRYN COPELAND,
Defendant and Counter-Plaintiff.**

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IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

**Defendant/Counter-Plaintiff's Kathryn Copeland's
Notice of Nonsuit Without Prejudice**

TO THE HONORABLE JUDGE OF SAID COURT:

Pursuant to Texas Rule of Civil Procedure 162, Defendant/Counter-Plaintiff Kathryn Copeland files this Notice of Nonsuit Without Prejudice and respectfully shows the Court:

1. Counter-Plaintiff hereby nonsuits, without prejudice, all counterclaims and affirmative claims for relief asserted against Plaintiffs/Counter-Defendants Weinstein Management Co., Inc. and WMCI Dallas X, LLC, including but not limited to all claims and causes of action asserted in Counter-Plaintiff's First Amended Answer, Special Exceptions, Verified Denials, Affirmative Defenses, and Counterclaims filed on or about November 12, 2025.

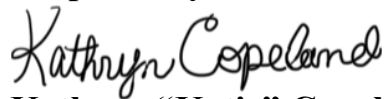
2. This Notice nonsuits all of Counter-Plaintiff's affirmative claims, including but not limited to her previously filed Partial Motion for Summary Judgment and any other pending motions seeking affirmative relief on those claims. All such motions are hereby withdrawn.
3. This nonsuit is taken without prejudice to Counter-Plaintiff's right to refile any and all claims and causes of action in any court of competent jurisdiction, state or federal, at a later date.
4. Counter-Plaintiff expressly preserves and does not waive: (a) all affirmative defenses, special exceptions, and verified denials asserted in response to Plaintiffs' claims, which remain on file and unaffected by this Notice; (b) all rights, remedies, claims, and causes of action available under federal and state law, including without limitation under the Fair Housing Act, 42 U.S.C. §§ 3601 *et seq.*, the Americans with Disabilities Act, 42 U.S.C. §§ 12101 *et seq.*, and corresponding Texas statutes; (c) all tolling, continuing-violation, and equitable doctrines applicable to limitations; (d) the right to assert these claims in any forum, including federal court; and (e) all evidentiary, procedural, and appellate rights.
5. Under Texas Rule of Civil Procedure 162, a nonsuit "shall have no effect on any motion for sanctions, attorney's fees or other costs, pending at the time of

dismissal." Counter-Plaintiff acknowledges this provision and reserves all defenses to any such pending motions.

6. This Notice is effective upon filing. *See* Tex. R. Civ. P. 162; *In re Bennett*, 960 S.W.2d 35, 38 (Tex. 1997) (orig. proceeding) (right to nonsuit is absolute and effective on filing of notice).
7. A proposed Order of Nonsuit Without Prejudice is submitted herewith for the Court's convenience, although the dismissal of Counter-Plaintiff's claims is effective upon the filing of this Notice as a matter of law.

WHEREFORE, Counter-Plaintiff Kathryn Copeland respectfully notifies the Court and all parties that all of her counterclaims against Plaintiffs/Counter-Defendants Weinstein Management Co., Inc. and WMCi Dallas X, LLC are hereby nonsuited without prejudice, effective upon filing of this Notice.

Respectfully submitted,



Kathryn "Katie" Copeland

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

(817) 789-8498

Katie@CopelandLawTexas.com

Defendant and Counter-Plaintiff,

Attorney Pro Se

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the above and foregoing instrument was served on counsel of record this May 11, 2026 in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

Glynis Zavarelli
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Michelle Sortor
msortor@wandzlaw.com

Respectfully submitted,

A handwritten signature in black ink that reads "Kathryn Copeland". The signature is written in a cursive, flowing style.

Kathryn "Katie" Copeland